



# SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 09/02/2026 - 09:00 AM

08/19/2026

4:27 PM

Page 5

Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

|              |                                                                                                                                                                                                      |                                          |
|--------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------|
| 25-PRO-01356 | Conservatorship of Ryan Ho                                                                                                                                                                           |                                          |
| Line 6       | Proposed Conservatee: Ho, Ryan (LEE, DENISE MICHELE)<br>Petitioner: Ho, Kenneth (Pro Se)<br>Petitioner: Wu, Gloria (Pro Se)<br>Proposed Conservator: Ho, Kenneth<br>Proposed Conservator: Wu, Gloria | Appointment of Conservator<br>for Person |

## Tentative Ruling:

APPEARANCE ORDERED (Zoom allowed)

The Petition to Appoint Conservator of the Person is GRANTED as follows:

1. Kenneth Ho and Gloria Wu are appointed limited conservators of the person of Ryan Ho, and a limited conservatorship is the least restrictive alternative to protect the limited conservatee.
2. The conservatorship order shall be effective on September 25, 2026, when the limited conservatee attains the age of majority.
3. The limited conservatee's attendance at the hearing is waived.
4. The request for medical authority under Probate Code §2355 is denied. As this is a petition for a limited conservatorship, medical authority is granted under Probate Code §2351.5 to maintain clarity and consistency in the powers granted to the limited conservators.
5. The following limited powers are granted to the limited conservators pursuant to Probate Code §2351.5 and the limited conservatee's civil and legal rights will be limited in the following areas:
  - a. To fix the residence or specific dwelling of the limited conservatee;
  - b. Access to the confidential records and papers of the limited conservatee;
  - c. The right to contract;
  - d. The power to give or withhold medical consent; and
  - e. Decisions concerning the education of the limited conservatee.
6. A nonappearance hearing on the limited conservators' filing of the Confidential Conservatorship Care Plan Parts 1 & 2 (GC-355 & GC-356) within one hundred twenty (120) days of appointment is set for January 4, 2027 at 9:00 am.
7. Pursuant to Probate Code §1830, the limited conservators file a proof of mailing of the Notice of Conservatee's Rights within thirty (30) days of appointment.
8. The limited conservators shall attend conservator education classes within six (6) months of being appointed limited conservators and a Proof of Completion be filed with the Court.
9. The assessment amount of \$850.00 for the cost of this investigation is ordered and deferred until the Court determines sufficient funds exist.
10. The conservatorship shall be reviewed in one (1) year.



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 09/02/2026 - 09:00 AM

08/19/2026

4:27 PM

Page 6

Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

|                   |                                                                                                                                                                                          |                                                                                                                                                                                             |
|-------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 25-PRO-01499      | IN RE THE 1992 GENERATION-SKIPPING TRUST FOR THE BENEFIT OF DAPHNE DAPHNE                                                                                                                | Petition for Removal of Trustee Daphne Daphne and Appointment of Successor Trustee of the 1992 Generation Skipping Trust Agreement for the Benefit of Daphne Daphne-Continued from 04/07/26 |
| Line 7 through 11 | Petitioner: Daphne, Orea Krestine (SYME, DAVID MICHAEL)<br>Trustor: DAPHNE, VIRGINIA<br>Respondent: Daphne, Autumn (SPECTOR, DANIEL I)<br>Respondent: Daphne, Laurel (SPECTOR, DANIEL I) | Petition Hearing                                                                                                                                                                            |

**Tentative Ruling:**

APPEARANCE OPTIONAL [Related matters at line 7-11]

The Court adopts the Daphne Daphne's Guardian Ad Litem's recommendations filed in case no. **25-PRO-01540** [Line 11] as found in the supplement filed 6/25/2026. The court notes that the GAL's original recommendation/report was filed 4/27/2026, not 5/1/2026 as is set forth in paragraph 1 at line 22 of the GAL supplement.

The Court makes the finding that Daphne Daphne is incapacitated and unable to act as Trustee. A successor trustee will need to be appointed. The parties in this case are ordered to mediate pursuant to *Breslin v. Breslin* (2021) 62 Cal.App.5th 801 within ninety (90) days, in an attempt to obtain an agreement between them as to an appropriate, neutral, replacement for Ms. Daphne as Trustee of all trusts over which this court has jurisdiction. If the parties cannot jointly agree to one neutral private professional fiduciary, they shall jointly submit to the Court a list of up to three names of neutral private professional fiduciaries to whom they can agree and the court will choose one of the names to succeed Ms. Daphne as Trustee.

This Amended Petition is CONTINUED to January 29, 2027 at 9:00 am for status and for Petitioner to file an amended proof of service showing that all non-represented persons were mailed a copy of the amended petition and notice of hearing or provide a copy of the Judicial Counsel form Consent to Electronic Service for each non-represented person who was emailed notice. Any objections or responses to the Amended Petition are ordered to be filed at least ten (10) days before the next hearing. If the parties cannot agree on a neutral private professional fiduciary, then the joint list will also be due ten (10) days prior to the next hearing.